



## POLICE DEPARTMENT

May 22, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Feng Chen  
Tax Registry No. 932457  
26 Precinct  
Disciplinary Case No. 84029/08  
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The above-named member of the Department appeared before me on February 5, 2009, charged with the following:

1. Said Police Officer Feng Chen, assigned to Manhattan South Enforcement Squad, while on-duty, on or about and between October 3, 2006 and April 24, 2007, in the County of New York, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Police Officer did, on one or more occasions, improperly complete Supporting Depositions, in that said Police Officer did allow other Members of Service to wrongfully sign Supporting Depositions on his behalf. (*As Amended*).

PG 203-10 – Page 1, Paragraph 5—GENERAL REGULATIONS  
VICE ENFORCEMENT DIVISION MANUAL – PROCEDURE 10-10  
—Page 6, Paragraph 6—DUTIES AND RESPONSIBILITIES

The Department was represented by Lisa McFadden, Esq., Department Advocate's Office, and the Respondent was represented by Rae Downes Koshetz, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

### DECISION

The Respondent is found Guilty.

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DECISION

The Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Julio Cuevas, Sergeant Kevin Scanlan and Sergeant Michael Rothenbucher.

Julio Cuevas

Cuevas is an Assistant District Attorney (ADA) in New York County assigned to the Official Corruption Unit. He had been an ADA for 12 years and was formerly a supervisor in Criminal Court.

In March 2007, Cuevas learned from Executive Assistant ADA Gary Galperin, his immediate supervisor, that defendants were making certain motions to dismiss prostitution cases. Specifically, allegations were made that undercover vice officers were submitting supporting depositions that "were not in fact signed." Galperin requested that paperwork and supporting depositions created by the vice officers be collected.

Cuevas identified Department's Exhibit (DX) 1 as a supporting deposition (Prostitution Supporting Deposition) and explained its purpose. He said that in Criminal Court, a case is "written up" containing the charges and the allegations that the charges are based on. Cuevas said the majority of criminal court complaints are based on "deponent states he is informed by another officer via civilian or witness of the actions." The complaint is then used to charge the defendant at arraignment. In order for the case to proceed forward, a supporting deposition is

used to eliminate the hearsay contained in the criminal court complaint. Once the supporting deposition is filed with the court and defense counsel, the prosecution of the case can proceed.

Cuevas testified that the supporting deposition that he identified in DX 1 is a deposition specific to prostitution cases used in the Expedited Affidavit Program (EAP). He explained that some offenses such as prostitution, minor drug possession, trespass and shoplifting are handled via the EAP program in order to streamline the arrest process. In the EAP program, using a supporting deposition, a police officer would check off appropriate boxes, sign the bottom and send the document to the EAP office. The EAP officer becomes the deponent, and the officer who witnessed the conduct becomes the informant. No ADA would be involved in this process until after arraignment. The document itself is filed with the court and given to the defense attorney.

When presented with DX 2, Cuevas identified the document as another type of supporting deposition. He said that it differed from the one marked as DX 1 as it was "most likely from the DA's Office."<sup>1</sup> He clarified that the deposition in DX 1 would have been completed by a police officer at the time of an arrest, and the one in DX 2 created after an arrest. He said that both DX 1 and 2 were signed by an undercover (UC) number using an undercover number in the signature line. Cuevas stated that signing the document with a UC number has the same significance as any other signature as to how the case gets to arraignment.

The allegations about the supporting depositions were brought to the attention of the DA's Office by a defense attorney, William Knisley. He explained that Knisley filed a motion to dismiss a prostitution case in Midtown Community Court due to "irregularities signed or purported to be signed [on supporting depositions] by the same undercover." This attorney sent

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<sup>1</sup> That is, DX 2, a supporting deposition created on a computer, was most likely created at the unit of the DA's Office that writes up criminal complaints at the pre-arraignment stage. This is sometimes called the "complaint room," not to be confused with the Department's "124 room."

depositions to a handwriting expert for analysis and provided that expert's report (see DX 6). Knisley claimed that multiple supporting depositions appeared to have different signatures. Cuevas said that in response, the DA's Office assembled all of the arrest paperwork relating to arrests made by the undercover vice officers including complaints and supporting depositions and gave them to Galperin. The DA's Office referred the matter to the Internal Affairs Bureau (IAB).

Cuevas testified that his office dismissed any prostitution case in which any of the undercover vice officers were involved who were identified as subjects or targets. He noted that his office determined who was a subject or target through the original motion to dismiss filed by Knisley, and through additional UC numbers provided by Knisley. Cuevas said the prostitution cases were dismissed regardless of whether the defendant made a motion to dismiss; the DA's Office decided that "the best thing to do was to dismiss the case and allow IAB to conduct the investigation." Cuevas said that the total number of cases dismissed was about 50. The process of dismissing the cases was lengthy. Cuevas instructed his ADAs to search their files for cases involving the particular vice undercover officers, make copies of the paperwork and dismiss the cases as they came on the calendar in court.

Cuevas identified DX 3 as a supporting deposition for a case against Lisa Lee, arrested on December 28, 2006, and signed by UC 29462, the Respondent's UC number. This deposition had an identifier of "8-Q" on the lower right hand corner. Cuevas testified that he determined that this case was dismissed and sealed. He identified DX 4 as a supporting deposition dated February 8, 2007, signed by UC 29462 and having an identifier of "8-O" on the bottom right hand corner. He said this case was dismissed and sealed. As to DX 5, Cuevas said it was a

supporting deposition dated February 8, 2007, signed by UC 29462, with an identifier of "44-A." This case was dismissed and sealed, as well.<sup>2</sup>

Cuevas identified DX 6 as a handwriting analysis report that was supplied to the DA's Office. It was attached to "many" motions that were made by Knisley. Cuevas testified that the concern with the depositions not being signed by the actual undercover involved in the case was that it constituted perjury. Cuevas explained that all of the supporting depositions are under penalty of perjury and asserted that by signing it, the deponent certifies that he has read the complaint and that it is true based on his involvement.

As a result of the investigation of the officers in this case who were served administrative charges, Cuevas said that the DA's Office is now obligated to inform defense counsel in any future cases that the officers are involved in about this incident. This is so because it goes to the officer's credibility.

On cross-examination, Cuevas affirmed that the deposition must physically be signed by the individual bearing the UC number listed on it. He believed that it was still a crime if an undercover determined a deposition to be accurate and gave a person sitting next to him permission to sign his UC number on that deposition.

Cuevas said that ADAs were not instructed in the past to look at paperwork to ensure that signatures were consistent.

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<sup>2</sup> On voir dire examination of DX 3-5, Cuevas said that he had "no idea" who created the Prostitution Supporting Deposition form but was "sure it was created with the NYPD."

Sergeant Kevin Scanlan

Scanlan has been a member of the Department for 12 ½ years, and a sergeant for about five years. He was a member of Manhattan South Vice in November 2006 and was transferred to the 104 Precinct in March 2008.

Scanlan testified that in November 2006, his unit was conducting prostitution enforcement. He explained that when his unit would receive a complaint about prostitution at a particular location, they would conduct an investigation and send an undercover officer to the location. The undercover would attempt to make an agreement for prostitution so that an arrest could be made. If they were successful, the team would "move in and make an arrest." Scanlan said that the undercover would remain at the scene during the arrest process and ultimately, the defendant would be taken to the stationhouse for processing, where the arrest report would be completed. There were at least eight members on a team.

While an arrest was being processed, Scanlan said that he would be "[a]cross the hall" completing paperwork, consisting of "two recaps," an arrest report, a complaint report and a list of "all the numbers and everything else." Scanlan testified that after all of the paperwork had been completed, he would review it. The paperwork would be given to him by whoever had finished it and by that point, everything had already been signed. He claimed that he was not present when the paperwork was signed, and noted that among the documents that he would review was the Prostitution Supporting Deposition form. In reviewing DX 3, the check-a-box prostitution supporting deposition, Scanlan stated that he reviewed this form after the arrest described on it, personally signed the form and testified that the Respondent was the undercover. The UC number listed on the form is a shield number. Scanlan did not personally see the

Respondent sign the deposition, nor did he ask him if he did, as he believed that the Respondent did sign it.

Scanlan asserted that he was unaware that officers were signing supporting depositions for one another within his command. He did not give permission to his subordinates to do this and believed such a practice was not appropriate. Scanlan never witnessed any officers under his supervision signing supporting depositions for each other and was under the belief that his officers were signing their own supporting depositions. Scanlan said that he never compared handwriting on the paperwork and that he would just check the facts and "the numbers" for accuracy.

As a result of his involvement in this case, Scanlan said that he received charges and specifications for "conduct prejudicial and failure to ensure the proper people were filling out the proper paperwork." He "took" a penalty of 20 days.

On cross-examination, Scanlan said that upon being assigned to the vice unit, the Prostitution Supporting Deposition forms were already in use. He was unsure of who designed the form. He testified that new officers assigned to the unit receive Organized Crime Control Bureau training, but did not know if this training addressed prostitution enforcement. Scanlan asserted that he did not know how the officers were trained because he "never went through that [training]."

Scanlan contended that he had not realized the possibility that, as a result of his disciplinary plea, he could be called as a witness to testify against his subordinates. He said that no one mentioned this to him.

On redirect examination, Scanlan testified that he received no special treatment or mitigation regarding his disciplinary case in exchange for his testimony.

Sergeant Michael Rothenbucher

Rothenbucher has been a member of the Department for nine years and has been assigned to the Internal Affairs Bureau (IAB) for over two years. In March 2007, he investigated an allegation from the DA's Office about "handwriting irregularities with regards to prostitution supporting depositions from arrests made in Manhattan South Vice." Specifically, a defense attorney who had represented numerous alleged prostitutes had examined paperwork from Manhattan South Vice, found irregularities, and brought it to the attention of the DA's Office. Initially, Detective Tauber and Police Officer Bang, both from the vice unit, were implicated in the paperwork irregularity.

During his investigation, Rothenbucher received paperwork from the DA's Office which included 43 Prostitution Supporting Depositions and arrest paperwork associated with those depositions. Rothenbucher testified that in addition to Tauber and Bang, the DA's Office later identified the Respondent as being involved with the irregularities in the depositions.

Rothenbucher reviewed the 43 supporting depositions with his supervisor, Lieutenant Smith, and noted that it was "clear to us there was different numbers written in different ways on different documents," specifically as to the UC numbers. Of the 43 depositions, the undercover officers referenced on them included the Respondent, Tauber and Bang.

Rothenbucher recalled a conversation that he had with ADA Heffner. Heffner faxed Rothenbucher a letter from Knisley implicating the Respondent and about eight other officers.

In reviewing the 43 supporting depositions, 14 of them were signed with the Respondent's shield number. Rothenbucher testified that 11 "seemed" to be similar and the remaining three were "dissimilar" to the 11. A team from IAB went to the Manhattan South Vice office and seized various paperwork. This led to Official Department Interviews of about



40 members assigned to Manhattan South Vice, in the rank of police officer, detective and sergeant. Of those members interviewed, allegations were substantiated against ten.

Rothenbucher said that of the ten, two were supervisors who received charges for failing to verify accuracy of the depositions, and eight were officers charged with either allowing others to sign depositions, or signing depositions that were not theirs. The eight officers who received charges made admissions in Official Department Interviews. The 30 vice members who did not receive charges were questioned about supporting depositions, and whether or not they signed them on behalf of others or permitted others to sign for them.

During his investigation, Rothenbucher interviewed Detective Patrick McGrath, possibly on April 25, 2007. During his Official Department Interview, McGrath was shown DX 4, a supporting deposition signed by UC 29462 and Scanlan, alleging that Kim Min Jeong offered sexual intercourse in exchange for \$350. McGrath admitted to signing this supporting deposition on behalf of the Respondent.

Rothenbucher also interviewed the Respondent, more than once. During the interviews, the Respondent was shown a collection of supporting depositions which had been provided to IAB by the DA's Office. Rothenbucher identified DX 8 as a Prostitution Supporting Deposition alleging that Chan Lin Jie offered sexual intercourse for \$80 on December 28, 2006. He said this deposition was signed by Scanlan and signed by UC 29462. Rothenbucher testified that when he showed this deposition to the Respondent during an Official Department Interview, the Respondent admitted that he did not sign it despite the fact that his UC number was on it. When presented with DX 3 and 9, Rothenbucher noted that both were Prostitution Supporting Depositions bearing the UC 29462 signature. However, when shown these two depositions at his Official Department Interview, the Respondent said that it was his shield number but not his

handwriting and admitted that he did not sign them. Rothenbucher believed that the Respondent “said something to the effect that he was told the circumstances of these particular arrests and said basically to whoever filled them out, ‘yes, that sounds right. You can go and sign them.’”

Regarding DX 4, Rothenbucher believed that the Respondent admitted that he did not sign this deposition either.

On cross-examination, Rothenbucher said he believed that Captain LaBarbera was the commanding officer of Manhattan South Vice at the time he conducted his investigation.

LaBarbera was not interviewed because Rothenbucher “basically wasn’t told to do it.”

Rothenbucher stated on cross-examination that he was “vaguely” familiar with the Vice Enforcement Division Manual and “may have glanced” at it during his investigation. In response to the Court, Rothenbucher said that he was sure he “glanced” at the manual regarding signatures on the depositions but did not recall when or what pages he looked at. He did not review the part of the Vice Manual that makes a commanding officer responsible for the accuracy of documents in a command.

When Rothenbucher was asked whether the check-a-box supporting deposition was “an official New York Police Department form,” he answered, “I am not sure. I know they use it in court. I am not sure if it is a New York Police Department form.” Rothenbucher received the forms from the DA’s Office, so he “presumed that they would be allowed to be used in court.” He did not dispute the fact that Department forms “generally have numbers on them that indicate they are official Department forms,” but he was unsure as to whether the document was a “Department form or District Attorney form.” He agreed that there was nothing on the form “that notices or identifies it as an official police department form.” When he was handed one to

examine, he stated that it did “look to [him] as an investigator as an official Department form.” Rothenbucher had seen similar check-a-box forms for controlled substance arrests.

On examination by the Court, Rothenbucher affirmed that he was a sergeant at the time of the investigation. While he was the lead investigator, he was given instructions by Captain Miller as to what to do. In the event that he wished to question a member of a higher rank than himself, Rothenbucher said that he has the authority to do so but would need someone of equal or higher rank present at the interview.

#### Summary of First Official Department Interview of Respondent

The Respondent was interviewed on April 25, 2007 (see Court Exhibit [CX] 2, tape; CX 2a, transcript).

The Respondent was presented with 25 blank prostitution supporting depositions and asked to sign them, as he would any other document in the course of his duties, with his UC number. He was then asked to sign ten overtime reports with his “regular signature.”

On February 8, 2007, the Respondent said he was conducting enforcement operations at the Marriott Marquis hotel. He was shown a supporting deposition, marked as 8-O, dated February 8, 2007, for an arrest of Kim Min Jeong (see DX 4). He recognized the UC number as 29462, his shield number, on the bottom of this deposition. When asked if he personally signed it, he said, “I’m not sure. It looks like mine.” The Respondent was then asked to examine the 25 supporting depositions that he previously signed and asked if the “9” on any of them were “open.” The Respondent believed that two of the documents had “open” 9s. He then said that the signature on the Jeong deposition was “[p]robably not” or “[m]aybe not” his. He could not

give a definitive yes or no answer. He said that perhaps the arresting officer signed the deposition. "The whole team was there."

According to the Respondent, the February 8, 2007, operation was "big." He made six arrests that evening. He said that the Jeong deposition was brought to his attention in order to ensure that the currency and the agreement were accurate. He said that "they had to show me the pictures and how much I got on with her."

The Respondent said it was a possibility that his signature was not on the deposition because he "made so many collars" that day and was going back and forth from the office typing information into the computers. As to his function after the arrests had been made, the Respondent said that he may have been completing a DD-5 and gave permission to someone to complete a supporting deposition. He explained that McGrath was the arresting officer and "might" have signed the Jeong deposition. He clarified that McGrath "probably" signed it but was not sure if it was his signature. The Respondent said another officer may have completed the deposition because he is sometimes "eating or busy" while arrest paperwork is being completed. In an instance such as this, he said, he would be presented with the deposition and he would say "yeah, just put my shield number down."

When shown a supporting deposition, 8-P, for Li Gi Tam, dated December 28, 2006, the Respondent identified his undercover number on the document. He noted that it was not his signature and that he did not know who signed it. He recalled the circumstances of the arrest and said that he made three arrests that evening at 7 Allen Street. It was not his handwriting above his signature, and he did not believe it was Sergeant Scanlon's either although he was unsure of Scanlon's handwriting. When asked if he saw the Li Gi Tam deposition and gave permission for

someone to sign it, the Respondent did not remember. Generally speaking, however, he said that normally the arresting officer would ask him if the deposition was accurate.

The Respondent was shown another supporting deposition, 8-Q, for Lisa Lee (see DX 3), dated December 26, 2006. Although he said that his shield number is on the deposition, he did not sign it. He said that it was "probably" signed by the same person who signed the preceding deposition. This deposition was also associated with an arrest at 7 Allen Street. He said that he remembered the incident but did not recall who the arresting officer was and that he would have to look at the "tac plan" to determine who it was.

The Respondent said that he has never signed a "legal document," such as a supporting deposition, accusatory instrument, search warrant application or similar document as another undercover officer. The Respondent said he had never signed his name on someone else's paper or written another UC number for something another undercover wrote. He did not know of any other officers that have signed documents as other officers. The Respondent admitted that the depositions that he was shown which bore his undercover number were not signed by him. When asked if this was customary or a frequent occurrence, the Respondent claimed that he did not know.

The Respondent stated that after his unit made arrests and concluded enforcement, they would proceed to the 7 Precinct. Prisoners were held on the first floor of the precinct and the arrest processing occurred on the third floor. The Respondent said that everyone would process paperwork. He said that other members of the team "definitely" prepared supporting depositions with his shield number on the bottom. When asked, again, how often this occurred, the Respondent stated, "It happens; it[']s not common."

The Respondent said that he has been involved in about thirty to forty situations where he received offers for sex as an undercover. He estimated that out of thirty supporting depositions for those arrests, he signed "twenty-something" of them and about ten were signed by someone else. The Respondent reiterated that he was shown the depositions before they were sent to the DA's Office and that they were always correct.

Summary of Second Official Department Interview of Respondent

The Respondent was re-interviewed on March 4, 2008 (see CX 1, tape; CX 1a, transcript).

When asked if he recalled the arrest of Alicia Pearlman on February 8, 2007, the Respondent replied affirmatively and said that he was the undercover officer for this arrest. It also occurred at the Marriot Marquis hotel. The Respondent said that he perused various newspaper and internet advertisements and found an advertisement for Pearlman on Craigslist. He telephoned her; she arrived at the hotel and subsequently offered the Respondent \$350 for "full service," i.e., sexual intercourse. When shown the supporting deposition for this arrest, the Respondent said that he did not think that it contained his signature, but he stated that the facts as to date, time and location were still accurate on the document. The Respondent thereafter said that none of the handwriting on the Pearlman deposition was his.

The Respondent was asked how someone else prepared a deposition for the Pearlman arrest with his undercover number on the bottom of it. He reiterated that he usually prepares the depositions himself, but did not for the Pearlman arrest. He could not recall why he did not personally prepare the Pearlman deposition. The Respondent then stated that he may have prepared a deposition for this arrest but that he is unsure of where it is.

The Respondent affirmed that it was regular practice for a completed supporting deposition to be presented to a supervisor. He said that there was no chance that he would be furnished with a blank supporting deposition already containing a supervisor's signature. He has never seen a "pre-signed" supporting deposition but noted that "maybe in the hotel room somebody already fill it out because that night we have seven bodies." He said it was a possibility that someone pre-printed the tops of the depositions because "every girl is a different, they charge a different price." The two arresting officers for the operation were McGrath and Jessica Sterling.

#### The Respondent's Case

The Respondent testified on his own behalf.

#### The Respondent

The Respondent testified that he is assigned to the 26 Precinct. He was born in Fuzhou, China, and came to the United States when he was 14 years old. Upon arriving in the country he did not speak English. He attended Junior High School 230 and Murry Bergtraum High School, both in Manhattan, followed by Binghamton University and John Jay College of Criminal Justice. In July 2003, he became a member of the Department. The Respondent worked in a variety of commands, including Impact, the 19 Precinct, a task force and the 20 Precinct. The Respondent applied to the Vice Division and was given a position as an undercover officer in August 2006 due to his skills in Chinese languages.

The Respondent testified that he received no training particular to Vice when he arrived. He said that he has never seen the Vice Enforcement manual and learned the duties of his job as

he worked. He served in an undercover capacity in over 250 cases, but was never part of the backup team. He explained the procedure for making an arrest for a prostitution offense. Upon entering into an agreement with a prostitute, the Respondent would signal the supervisor. Most of the time, the Respondent would be separated from the arrestee at the time of the arrest. He would be treated as a customer by the officers making the arrest so as not to blow his cover.

After an arrest had been made, the Respondent said that he would prepare paperwork at the stationhouse. He testified that everybody worked as a team in preparing the paperwork because the Department did not want to pay overtime. The Respondent said sometimes he performed work on the computer, and other times he prepared vouchers and DD-5s. He noted that the arrest processing procedure was "involved." It required the taking of photographs, fingerprinting, preparation of DD-5s and vouchers. The Respondent testified that most of the paperwork was completed in the office with the exception of fingerprinting and photographing, which was done in the lobby of the 7 Precinct. He noted that the office where the paperwork was prepared was a "little bit smaller" than the trial room and anywhere from 10 to 40 officers would be in the office at the same time.

The Respondent testified that sometimes he completed the supporting depositions and other times other officers would complete them. He explained that in some instances, he would be preparing vouchers or DD-5s or working on the computer and another officer would "ask me what was the agreement and they would ask my permission" to complete the supporting deposition. That officer would prepare the deposition with the Respondent's name or UC number, he would review the deposition, and then it would be faxed to the DA's Office. He said that the depositions were always correct and noted that there was "nothing gained for doing wrong information on the supporting deposition or anything." The Respondent testified that he



had nothing to gain by having someone else print his UC number on the depositions, nor did he ever intend to deceive anyone.

During his career, the Respondent said that he received favorable performance evaluations. He was also on an investigative track toward being promoted to detective, a track that he is no longer on. After receiving the charge in this case, the Respondent said that he was transferred out of the vice unit to patrol in the 26 Precinct. However, he was never suspended or modified.

The Respondent claimed that no one ever spoke to him about supporting depositions, and no one ever told him that they had to physically be signed by the actual deponent. He was never given any instruction as to how a supporting deposition is supposed to be completed. Prior to this case, the Respondent received no feedback from the DA's Office about any problems with the depositions that were submitted. The Respondent said he had been in the vice unit for four months when this investigation began. He noted that he had never been the subject of any disciplinary action except for one command discipline when he parked his personal automobile in an unauthorized spot. He made over 250 arrests in his 19 months in the vice unit.

On cross-examination, the Respondent testified that he was involved in 30 to 35 arrests from the time he became a police officer to November 2006 (he arrived at the vice unit in August 2006). For those arrests, he completed paperwork consisting of online booking sheets, complaint reports and property vouchers. This paperwork required the Respondent to sign his name, and he said that he did not allow others to sign his name for him. He also said that he met with an ADA for his arrests prior to November 2006 and filled out affidavits. The Respondent knew that these affidavits were sworn documents and he said that he signed them himself. He admitted that he knows what a sworn document is and what it represents.

The Respondent identified DX 2, the computer print-out form, as a supporting deposition that he signed. He agreed that it was a sworn document containing a "sworn statement line." He agreed that the title on DX 2 was the same as the title on the Prostitution Supporting Depositions. When asked whether it was "that false statement line that alerted you to the fact" that DX 2 "was a sworn document," the Respondent answered, "I just know because from the DA's Office." He added that often the DA's Office would fax a supporting deposition to his command a few days after an arrest. He would sign the deposition and fax it back.

When shown DX 3, one of the check-a-box forms, the Respondent admitted that the document had his undercover number on it but that it was not his signature. Someone else signed this deposition for him. The Respondent admitted that this deposition had the same "false statement line" as DX 2. The Respondent further testified that DX 4, 5, and 8 all had his UC number on them. He did not sign any of these documents and all had the same false statement notations as DX 2.

The Respondent testified that he knew these supporting depositions were sent to the DA's Office. He first stated that he was not sure if these supporting depositions were forwarded to the court, saying, "I thought they use it for the New York Police Department." He then said that he was aware that the depositions were sent to the court. He believed that the Prostitution Supporting Depositions were being used for the purpose of prosecuting cases.

The Respondent said that he had testified in the past, including on prostitution cases where he served as an undercover. He was questioned about paperwork he prepared for those cases. He had never been asked if a signature on a document was his. He claimed that the depositions for those cases were signed by him.

The Respondent testified that he has never signed supporting depositions for anyone. He said that he never had permission from anyone to do so, nor did anyone ever ask him to sign on their behalf. He never asked anyone for permission to sign their depositions. The Respondent did not think he completed the top portions of the supporting depositions on behalf of other officers.

The Respondent said that he never personally applied for a search warrant. He believed that he signed an affidavit in support of an application for a search warrant before, and said that he personally signed it and understood that it was a sworn document. He testified that he never signed any Department forms on behalf of other officers and has never allowed any other officers to sign forms aside from the depositions on his behalf. He has never allowed anybody else to sign other legal documents such as leases or contracts on his behalf. The Respondent did not believe that the Prostitution Supporting Depositions were "phony" forms.

#### FINDINGS AND ANALYSIS

The Respondent is charged with allowing other members of his vice unit team to sign Prostitution Supporting Depositions where he was the deponent. These were check-a-box, fill-in-the-blank documents, see DX 3 as an exemplar, for use in prostitution enforcement operations in order to expedite the pre-arraignment process, as Prostitution (Penal Law § 230.00) cases were deemed minor by the DA's Office. Instead of a Department member having to speak to an assistant district attorney and sign a complaint, the officer could fill out the supporting deposition and fax it to the Expedited Affidavit Program officer, who would then become the deponent on the complaint. The Prostitution Supporting Deposition listed the defendant's name and arrest number, the time and place of occurrence, the sexual conduct agreed upon, and the consideration.

The documents also contained the following paragraph, just above signature lines for the deposing police officer or detective, and for the supervisor: "Note: False statements made herein are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law." The Department alleges that by allowing other members to sign his UC number while the team was preparing arrest paperwork, the Respondent acted wrongfully because he allowed a false statement to be made. The Court agrees and finds him Guilty.

The Respondent did not deny that he allowed other team members to sign his name to the Prostitution Supporting Depositions. He asserts that this conduct was not wrongful. The Court disagrees with his reasoning. The document is titled "Prostitution Supporting Deposition," with a reference to Penal Law § 230.00 directly below. The computer-printed document, DX 2, used in "regular," non-expedited cases, requiring an ADA's involvement, is also titled "Supporting Deposition," and makes a reference to Criminal Procedure Law § 100.20 (which deals with supporting depositions in local criminal courts). The Respondent testified that he knew DX 2 was a sworn document, and stated that he was "aware it is necessary for you to sign these documents yourself." The Prostitution Supporting Depositions had almost the exact same title, and the same warning that it was a sworn document. This should have alerted the Respondent that the Prostitution Supporting Depositions also needed to be signed by him.

The signature of the deponent essentially states to anyone looking at the supporting deposition that the person whose name is on the deponent's signature line actually signed the document. Here, the "UC 29462" signature should have communicated to anyone reading the document in the future – prosecutors, defense attorneys and defendants, judges – that UC 29462, the Respondent, signed the supporting deposition and had already sworn it to be true. That was not what happened because the Respondent improperly allowed other members of his

enforcement team to sign his name to the depositions. The person who swore the Respondent's statements to be true was not the Respondent. No "training" should have been necessary to alert the Respondent that when a sworn document called for his signature, he had to be the one signing it.

The Court further rejects the argument that because the Prostitution Supporting Depositions were not "official" Department documents, it was not improper for the Respondent to allow others to sign on his behalf. While these documents did not have a "PD" number or Department logo, neither did DX 2, the computer print-out supporting deposition, and the Respondent knew he had to sign those himself. It is not surprising that the Department and the DA's Office would have collaborated on the design of the Prostitution Supporting Deposition form because EAP benefited both agencies by saving time. The fact that a document charging Prostitution would mention sex acts is not surprising, nor did it make the document look unprofessional or somehow unworthy of the Respondent placing his own signature on the line that called for it.

The Court also rejects the summation argument that the advent of electronic signatures ameliorates what the Respondent did. The Respondent's counsel cited People v. Patanian, 20 Misc. 3d 298 (Sand Lake Town Ct. 2008) in support of this proposition. The argument is not well taken. Patanian concerns a situation where a State Police trooper was able to "sign" a traffic ticket by "the inputting of information into a system and thereafter the printing of a simplified traffic information by the issuing officer which includes a programmed signature." See Patanian, 20 Misc. 3d at 300. In other words, the trooper's actual signature was on file in the computer system; by pressing a button, he was able to print out his signature onto the ticket. Thus, the trooper himself was affixing his own signature to the document. The only real difference was

that it was not his original signature, but a copy. Also, the Court held, this procedure was specifically permitted by State Technology Law § 304 (2), part of the Electronic Records and Signatures Act. Perhaps most notably, the Court said, "There are no allegations that a third party aided in the process or helped prepare the uniform traffic ticket in any way." Patanian, 20 Misc. 3d at 302.

In conclusion, the Court finds that the Respondent's admitted conduct was contrary to the good order, efficiency and discipline of the Department, and finds him Guilty as charged.

### PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222, 240 (1974). The Respondent was appointed to the Department on July 1, 2003. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of allowing other members of the Department to sign his UC number on Prostitution Supporting Depositions where he was supposed to be the deponent. Similar cases to the Respondent's have resulted in an approved negotiated penalty of 30 vacation days. See Disciplinary Case No. 84026/08, approved Mar. 30, 2009 (30 vacation days for 11-year member with no prior disciplinary record who signed supporting depositions on behalf of other officers); Disciplinary Case No. 84027/08, approved Mar. 10, 2009 (same penalty for 7-year member with no record who signed supporting depositions on behalf of other members and/or allowed others to sign on his behalf). This is an appropriate and fair penalty for

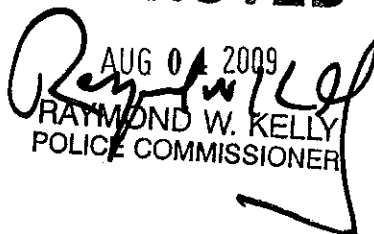
the Respondent as well. Accordingly, the Court recommends a penalty of the forfeiture of 30 vacation days.

Respectfully submitted,



David S. Weisel  
Assistant Deputy Commissioner - Trials

**APPROVED**



AUG 04 2009  
RAYMOND W. KELLY  
POLICE COMMISSIONER

POLICE DEPARTMENT  
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials  
To: Police Commissioner  
Subject: CONFIDENTIAL MEMORANDUM  
POLICE OFFICER FENG CHEN  
TAX REGISTRY NO. 923457  
DISCIPLINARY CASE NO. 84029/08

In 2008, the Respondent received an overall rating of 4.0 on his annual performance evaluation. In 2005 and 2004, he received an overall rating of 3.0. He has received no medals.

[REDACTED]

[REDACTED]

For your consideration.



David S. Weisel  
Assistant Deputy Commissioner – Trials